



TERMS OF REFERENCE

Request for Proposals for Recruitment of a consultancy firm for the development of Eswatini's national data policy.

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Contact	For any questions or enquiries, please write to: tenderenquiries@smartafrica.org For Proposal Submissions: procurement@smartafrica.org

1. INTRODUCTION AND GENERAL BACKGROUND

1.1 About Smart Africa Alliance

The **Smart Africa Alliance** is a bold and innovative commitment from African Heads of State and Government to accelerate sustainable socio-economic development on the African continent with the vision to transform Africa into a Single Digital Market by 2030. Its 5-point manifesto seeks; to put ICT (Information and Communication Technology) at the centre of national socio-economic development agenda, to improve access to ICT especially Broadband, to improve accountability, efficiency, and openness through ICT, to put the Private Sector First and to leverage ICT to promote sustainable development.

As of June 2025, The Smart Africa Alliance membership included 40 Member States, International partner organizations including the Africa Union Commission (AUC) and International Telecommunications Union (ITU) **among others**, as well as International Private Sector Members. The Smart Africa Secretariat (SAS) is based in Kigali, Rwanda¹.

1.2 Project Background

Data governance has emerged as a central topic in global policy discourse. The ability to collect, process and generate value from data is now widely recognized as a key driver of growth in the digital economy. Simultaneously, geopolitical concerns about data sovereignty and fairness in global data value chains are drawing significant attention from policymakers worldwide.

In this global landscape, multiple international initiatives have been launched. The Osaka Track under Japan's 2019 G20 presidency promoted "data free flow with trust." In 2021, the World Bank's World Development Report was dedicated to "Data for Better Lives." In 2022, the **African Union Commission (AUC)** published the **AU Data Policy Framework**², which is now being domesticated across the continent.

With a population of over 1.5 billion in 2025³ and mobile data traffic surpassing 2.5 Exabytes, Africa is experiencing an unprecedented wave of digital transformation driven by growing broadband and smartphone penetration. As a result, data has evolved from a mere by-product to a strategic asset and a contested commodity across public, private, and civic sectors. Despite this transformation, data governance frameworks across Africa remain fragmented, resulting in disjointed policies and limited transparency regarding how data is being exploited across the continent. While other countries are relatively ahead, most African countries are yet to establish the policy and regulatory infrastructure that supports effective and trusted data governance. Harmonizing data policies is therefore essential to unlocking the full potential of initiatives such as the African Continental Free Trade Area (AfCFTA), which hinges partly on the seamless cross-border flow of data.

The rapid emergence of advanced technologies — such as Artificial Intelligence (AI), Big Data, the Internet of Things (IoT), Machine Learning, and Blockchain — further underscores the urgency of establishing a coherent, human-centric, and secure data governance framework aligned with international standards and tailored to Africa's socio-economic development goals.

¹ <https://smartafrica.org>

² [AU Data Policy Framework](#)

³ <https://www.worldometers.info/world-population/africa-population/>

It is within this strategic context that the “Data Governance in Africa Initiative⁴”, a joint effort by the African Union and the European Union, was launched to facilitate the implementation and domestication of the African Union Data Policy Framework. The initiative was started in 2023 with funding from the European Union, Germany, Finland, Belgium, France, and Estonia. It is jointly implemented by GIZ, Enabel, Digital Africa, ESTDEV, Expertise France and HAUS. Smart Africa is implementing certain aspects of this initiative as a partner of GIZ.

The project aims to support:

- SO1: The adoption of comprehensive and harmonized policies and regulations governing personal and non-personal data in Regional Economic Communities (RECs) and Member States of the African Union.
- SO2: The creation of value in data-driven use cases in sectors by involving stakeholders from the public and private sectors and civil society and focusing on creating value through cross-border data sharing.
- SO3: The increase in the number of bankable proposals for investments in green and secure data infrastructure.

As part of SO1, Smart Africa will support the Kingdom of Eswatini in developing its National Data Strategy. A specialized consulting firm will be recruited to lead this work, which will be informed by:

- The guiding principles and recommendations of the African Union Data Policy Framework
- The recommendation of the Smart Africa Data Governance Blueprint.
- Other continental and regional legislation and policy governing the use of data.
- An in-depth analysis of Eswatini’s digital and data ecosystem, including infrastructure, legislation, and data usage.
- The identification of key stakeholders in the public and private sectors, civil society organization, the technical community and academia and their roles within the data value chain, with their views and critical opinions on data governance in Eswatini.
- And the design of a practical and inclusive roadmap for strategy implementation.

1.3 Main Strategic Objectives of the Smart Africa Data Governance Project

In this context, various Member States of Smart Africa have adopted flagship projects in relation to data governance. These member states are working towards data governance models and strategies which enable effective data sharing for a value-laden, secure, and trusted single digital market in Africa by 2030.

To this end, Smart Africa is running several projects around data governance premised on:

- understanding the value of aggregated data in knowledge creation and global value chains of the data economy to mobilize the potential of the data economy for the African socio-economic development
- maximizing the value of data through its circulation between organizations and across borders to build a single digital market.
- Supporting member states in jointly building up their capacities to safeguard their national sovereignty and to protect their citizens and organizations.

⁴ [Data Governance in Africa Initiative](#)

For this value to be realized, capacities to make smart use of available data must be enhanced on the African continent, both in the public and private sector.

Request for Proposals (RFP) Objectives

1.3.1 General Objectives

The overall objective of this Request for Proposal is to select a consulting firm to provide technical assistance to the Kingdom of Eswatini and Smart Africa Secretariat for the development of a National Data Policy for the Kingdom of Eswatini.

The outcomes of the consultancy will be guided by the Eswatini National Taskforce Committee, chaired by a representative nominated by the Ministry of ICT on behalf of the Kingdom of Eswatini, with strategic support from Smart Africa Secretariat.

1.3.2 RFP Specific Objectives

The mission of the consulting firm will specifically consist of providing technical support to the Kingdom of Eswatini by drafting, reviewing, and finalizing the government's National Data Policy (see Section 2 below).

The purpose of this document is to present the details of hiring a consulting firm to help achieve the stated objectives.

2. DEVELOPMENT OF THE ESWATINI NATIONAL DATA POLICY

The Kingdom of Eswatini has been selected by Smart Africa as one of two African countries to benefit from the Data Governance in Africa Initiative supported by Team Europe through GIZ's DataCipation programme.

The Data Governance in Africa Initiative is designed with the objective of improving the conditions for a value-adding data economy, in collaboration with the local digital ecosystem.

The purpose of this document is to present the details for the recruitment of a consulting firm to help achieve the objective.

2.1 The Scope and Objectives

The consulting firm will assist the Kingdom of Eswatini in developing its National Data Policy. The National Data Policy is a vital step toward leveraging data as a strategic asset for Eswatini's development. By enhancing governance, promoting data-driven decision-making, and ensuring data privacy, the policy will support the country's vision for economic recovery and sustainable livelihoods.

The overall objective is to design a National Data Policy that:

- Aligns with Eswatini's socio-economic development goals.
- Harmonizes with continental, regional and global data governance frameworks.
- Balances innovation, data protection, and national security.
- Encourages cross-border data flows within regulatory frameworks.

The National Data Policy will define the guidelines for establishing a robust national data governance policy and a practical implementation framework for data governance, management, protection, and use to

support economic development, public service delivery, innovation, and regional integration. The development of the Eswatini National Data Policy aims to:

- a. Developing both basic and economy-specific infrastructure.
- b. Facilitating access to public data.
- c. Enabling safe and lawful data sharing.
- d. Creating trust mechanisms for all sectors.
- e. Building capacity for individuals and institutions.

The developed data policy will encompass the following areas:

- **Data Collection and Management:** Standardization across government agencies.

This refers to creating consistent methods and systems for how government institutions gather, store, and maintain data. Often, different ministries or departments use different formats, tools, or definitions, which makes it difficult to compare or combine datasets.

Standardisation means:

- Using common data formats, classifications (e.g., for gender, regions, education levels), and procedures.
- Ensuring data is collected regularly and of high quality.
- Creating interoperable databases.

It improves efficiency, reduces duplication, and supports evidence-based decision-making across government sectors (e.g., health, education, agriculture).

- **Data Sharing and Accessibility:** Facilitating transparency and accountability.

This means ensuring that relevant government data is shared appropriately among institutions and made accessible to the public, civil society, academia, or private sector when appropriate.

Key aspects include :

- Developing open data platforms and APIs.
- Creating data sharing protocols between agencies.
- Making non-sensitive datasets (e.g., budgets, census data, public services) publicly available.

It builds trust, empowers citizens, strengthens oversight, and stimulates innovation (e.g., startups building solutions based on government data).

- **Data Privacy and Security:** Safeguarding personal data.

This involves putting in place legal, technical, and organizational safeguards to protect individuals' personal data from misuse, unauthorized access, or breaches.

This includes:

- Enforcing data protection laws (such as Eswatini's Data Protection Law (2022), and other regional and international frameworks).

- Setting rules for data, collection, use, retention, consent, anonymization, and secure storage.
- Ensuring that both public and private data handlers are trained and audited.

It preserves human rights, especially the right to privacy, and fosters trust in digital services.

- **Capacity Building:** Enhancing skills in data management.

Capacity building refers to training people and strengthening institutions so they can effectively collect, analyze, and use data.

Examples:

- Training civil servants in data literacy, visualization, or GIS tools.
- Equipping institutions with IT infrastructure and technical expertise.
- Supporting data journalism or civil society to understand and use data.

Even with the best tools and policies, poor human capacity limits impact. Empowering people ensures sustainability and good governance.

- **Regulatory Framework:** Supporting effective governance and compliance.

This entails creating and enforcing a coherent set of laws, policies, and standards that guide data use and promote accountability.

Includes:

- National data protection laws, digital governance strategies, and sector-specific data regulations.
- Setting up regulatory bodies (e.g., data protection authority, national statistics council).
- Aligning with international frameworks like the AU Data Policy Framework, Global Digital Compact and OECD principles

It provides the legal certainty needed for responsible data use, protects citizens, and helps attract international investment or partnerships.

2.1.1 Project Specific Objectives

- 2.1.1.1 Conduct an in-depth situational analysis and comprehensive review of Eswatini's legal and policy instruments including ICT, cybersecurity and cybercrime, identity systems, communication laws and data protection to assess alignment with digital transformation goals.
- 2.1.1.2 map the national data ecosystem, with a focus on identifying data producers, users, flows, governance gaps, and the inclusion of traditionally marginalised stakeholder groups such as women, youth, rural populations, and persons with disabilities. This will include targeted stakeholder interviews to ensure a representative and inclusive perspective.
- 2.1.1.3 Conduct a benchmarking exercise of national and regional data policies and key international frameworks, identifying commonalities and divergencies and sharing recommendations for harmonisation. This will be followed by a stakeholder engagement session to validate findings and inform the policy drafting process.
- 2.1.1.4 Draft the National Data Policy that includes the following:

- 2.1.1.4.1 Clear guiding principles on data sovereignty, openness, interoperability, inclusion and trust.
- 2.1.1.4.2 A robust governance framework detailing institutional mandates, coordination mechanisms, and roles for data stewardship.
- 2.1.1.4.3 Provisions for cross border data flows aligned with AU Data Policy Frameworks, Smart Africa Data Governance Blueprint and international standards.
- 2.1.1.4.4 policy guidance for emerging technologies such as AI, IoT, blockchain and big data analytics.
- 2.1.1.4.5 mechanisms for integrating with existing digital public infrastructure, including digital ID, smart government and national cybersecurity strategies.
- 2.1.1.5 Recommend specific legal and regulatory reforms based on gaps identified in the situational analysis and global best practices.
- 2.1.2 Develop a practical and phased 5 years roadmap for implementing the National Data Policy, aimed at unlocking the value of the data as a resource for attaining national priorities and development goals.
- 2.1.2.1 Recommend institutional coordination mechanisms and capacity building strategy to strengthen technical, legal, and operational capabilities with key stakeholders.
- 2.1.2.2 Develop the implementation plan and monitoring and evaluation framework. As part of the implementation plan, include a brief change management plan to support stakeholder buy-in and adoption.
- 2.1.2.3 Conduct two stakeholder consultations to gather inputs and validate key deliverables. The first consultation will follow the situational analysis and mapping exercise, and the second will focus on validating the draft National Data Strategy. These will include at least one public consultation session.

2.2 Main Outcomes and Deliverables

- 2.2.1 Inception report and workplan.
- 2.2.2 Situational analysis report.
- 2.2.3 Legal and regulatory landscape and benchmarking report.
- 2.2.4 Stakeholder consultation report, including outcomes of the brainstorming and validation workshops.
- 2.2.5 Draft National Data Policy and Policy Structure.
- 2.2.6 Final National Data Policy.
- 2.2.7 Policy implementation roadmap.
- 2.2.8 Monitoring & Evaluation (M&E) framework, including Change Management Plan.
- 2.2.9 Executive Summary / Policy Brief for dissemination.
- 2.2.10 Brainstorming and validation workshops report.

3. CONSULTANCY ARRANGEMENTS/ METHODOLOGY

The mission shall be carried out according to these terms of reference and according to a contractual framework to be defined between the Smart Africa Secretariat and the consulting Firm.

The mission shall be carried out by the Consulting firm with support from the Kingdom of Eswatini and the constituted Eswatini National Taskforce. The Eswatini National Taskforce (*thereafter referred to as Working Group*) will be composed of senior government officials and other stakeholders.

The Smart Africa Secretariat and the Kingdom of Eswatini will assist the Consulting Firm, as far as possible, in seeking contacts and authorizations related to the scope defined in this document. Nonetheless, the Consulting Firm is expected to submit a proposal which includes but is not limited to a detailed project plan and inception report.

It is expected that the Consultancy firm's work will be in line with the following methodology and rules:

1. The Consultancy firm will assume primary responsibility for drafting the expected deliverables in English. The working language for the Working Group will be English to cater for the diverse membership of the secretariat.
2. The Consultancy firm shall engage Smart Africa Secretariat, the Kingdom of Eswatini, the Working Group, and other selected stakeholders to discuss the roadmap for the consultancy services leading to the creation of an approved Inception Report that clearly explains how the project objectives (2.1.1) will be achieved.
3. The Consultancy firm will work closely with the designated staff of Smart Africa, the Kingdom of Eswatini and the Working Group to carry out the task. The consulting firm will report to the Smart Africa Secretariat, the Kingdom of Eswatini and the Working Group members, by participating in regular Working Group meetings (approximately once every two weeks) and by preparing the necessary meeting reports, slideshows, and summaries of documents.
4. The Consultancy firm shall integrate existing national and international guidelines and recommendations.
5. The Consultancy firm shall review the existing draft concept note with specific emphasis on data governance needs/gaps of the Kingdom of Eswatini.
6. The Consultancy firm will write an interim draft version of each planned deliverable and provide a presentation of these interim deliverables in English at workshops to be organized by Smart Africa. Every deliverable will be submitted to Working Group members and discussed during consultations and validation workshops. The Consultancy firm will collect comments on each interim deliverable and make consequential revisions in the final version.
7. Support and facilitation will be provided from the Smart Africa Secretariat for exchanges with the Kingdom of Eswatini and the collection of documents for the analysis of the existing situations.
8. The Consultancy firm shall organize and participate in consultation and feedback stakeholder workshops during the duration of the project and incorporate the stakeholders' comments from the workshops as appropriate and prepare the final report.
9. The Consultancy firm will guarantee the confidentiality of information shared by the Smart Africa Secretariat, the Kingdom of Eswatini and other stakeholders participating in the Working Group and Workshops. Publication of content can only take place after validation by the Working Group and the Kingdom of Eswatini.
10. The Consultancy firm shall submit each deliverable in five (5) printed copies and all working documents in soft copies, editable files (Word, Excel, PowerPoint, etc.), in English.
11. The Consultancy firm shall be able to communicate with the Smart Africa Secretariat, the Kingdom of Eswatini and Working Group in English and cover the costs for necessary translations of documents.

12. The Consultancy firm shall prepare an executive summary in PowerPoint format (both English and French) for the draft and final National Data Policy.
13. The consultancy firm shall ensure the final documents are designed according to the branding guidelines of Smart Africa.

4. DURATION OF THE ASSIGNMENT

The selected Consultancy Firm must carry out the project within four (04) months from the date of signing the contract.

The indicative timetable is as follows:

Timeline	Key Activities and Deliverables
T0*	- Kick-off meeting with project stakeholders (Smart Africa Secretariat, Eswatini National Taskforce, etc.) - Confirmation and joint adoption of detailed project schedule.
T0 + 2 weeks	- Submission and validation of the <i>Inception Report and Workplan (Deliverable 2.2.1)</i> - Report includes detailed understanding of the assignment, methodology, and activity timeline.
T0 + 4 weeks	- Brainstorming workshop with stakeholders to inform the roadmap and structure of the policy. - Preliminary stakeholder engagement conducted. - Presentation of data infrastructure and management mapping. (Input for Deliverables 2.2.2, 2.2.3, and 2.2.10)
T0 + 5 weeks	- Submission of the <i>Situational Analysis Report (Deliverable 2.2.2)</i>. - Submission of the <i>Legal and Regulatory Landscape and Benchmarking Report (Deliverable 2.2.3)</i>. - Submission of the <i>Draft Policy Structure (part of Deliverable 2.2.5)</i>.
T0 + 9 weeks	- Submission of the <i>Preliminary Draft National Data Policy (Deliverable 2.2.5)</i>. - Submission of the <i>Initial Implementation Roadmap (part of Deliverable 2.2.7)</i>.
T0 + 12 weeks	- Submission of the <i>Draft Implementation Plan and M&E Framework</i>, including Change Management Plan (Deliverables 2.2.7 and 2.2.8). - Submission of <i>recommendations for institutional capacity building (part of Deliverable 2.2.7)</i>.
T0 + 14 weeks	Validation Workshop with national stakeholders and broader ecosystem. (Part of Deliverable 2.2.10 and contributes to 2.2.4)
T0 + 16 weeks	- Integration of feedback from validation. - Submission of final deliverables: <i>Final National Data Policy (Deliverable 2.2.6)</i> <i>Final Implementation Plan and M&E Framework (Deliverable 2.2.7)</i> <i>Executive Summary / Policy Brief (Deliverable 2.2.9)</i> <i>Final Stakeholder Consultation and Workshop Report (Deliverable 2.2.4 and 2.2.10)</i>

T0*: Time when the contract is signed

5. PROFILE OF THE FIRM

Smart Africa is seeking to recruit a consulting firm with previous experience in developing national policies in Africa on the digital economy in general and preferably in the data governance area. Such prior work experience with members and partners of the Smart Africa Alliance must be supported by evidence of **three (3) similar assignments** in data governance (technical, institutional, regulatory, capacity development, cooperation) working with or within African organizations and governments. It shall clearly and precisely indicate the composition of the mission team only proven by **duly signed and stamped recommendation letters** or **portfolio of projects** to prove their professional experience in the data governance space in planning, management, and operations.

Since the selected firm will be working with the Kingdom of Eswatini to facilitate the development of the National Data Policy, the firm should be able to meet at least one of the following criteria:

- a) Be a firm based in Eswatini.
- b) at least one of the key consultants should be Swati and based in Eswatini or:
- c) the firm can bid as a consortium and submit relevant documents for the local Eswatini partner.

The Consultancy firm should be able to satisfy the following additional criteria:

- a. Applicants must be legal entities or any combination thereof with a formal intention to conclude an agreement or have concluded a grouping agreement. In the event of a grouping, all the member parties are jointly and severally liable for the contractual clauses.
- b. Have a proven track record in consultancy work in Africa. The Consultant must have experience in conducting similar consultancy work for other inter-governmental or regional organisations, multi-national companies, or non-governmental organisations in the region.
- c. Applicants must provide any document that the Smart Africa Secretariat may reasonably request, establishing to the satisfaction of Smart Africa being the Contracting Authority that they continue to be eligible to compete.
- d. Proven experience in internationally recognised best practices and approaches/methodologies of application of digital and data governance; with solid background/understanding of the digital and data economy and data niche sectors.
- e. Familiarity with various aspects of data economy and regulation, and digital transformation.
- f. Ability to work in an English environment.

The work shall be carried out by a team of at least (4) four highly qualified consultants/experts in the requested specialties, namely:

- **Lead Consultant/Head of Mission with the minimum requirements below to be considered for the evaluation:**
 - A minimum of a master's degree in technology law, computer science, economics, digital transformation, or related fields with a solid background/understanding of the data economy and data governance.
 - A minimum of 7 years of progressive responsibility in public policy development projects in Africa, including extensive experience in national and regional data governance policy instruments development or implementation.
 - Experienced in leading and coordinating project teams comprising a range of expert profiles, ideally across national boundaries and in remote settings in the development of national digital transformation policies.
 - A good understanding of data governance and regulation, data management standards or practices, implementation of large-scale data projects.

- Experienced in supporting the development of multi-stakeholder institutional frameworks and mechanisms in Africa and preferably in Eswatini.
- Having participated in at least one (1) similar project in the last 5 years.
- Having a good knowledge of digital ecosystem in the Kingdom of Eswatini would be an asset.
- **Legal Expert in data governance with the minimum requirements below to be considered for the evaluation:**
 - A University graduate with a minimum of a master's degree in law, technology law, or other relevant related fields
 - Having at least 5 years of proven experience in the legal aspects of data governance, data protection and privacy.
 - Excellent track record of data policy development in Africa at national or continental level.
 - Experience working in at least 3 African countries, including the Kingdom of Eswatini.
 - Having participated in at least one (1) similar project in the last 5 years.
 - Familiarity with African regional digital strategies, such as the African Union Digital Transformation Strategy and the African Union Data Policy Framework, would be an asset.
 - Having a good knowledge of digital ecosystem in the Kingdom of Eswatini would be an asset.
- **Data Expert with a focus on national digital transformation/digital economy strategies with the minimum requirements below to be considered for the evaluation:**
 - A University graduate with a minimum of a master's degree in data science, computer and/or STEM Disciplines, economics, statistics, business, project management, or other relevant related fields.
 - Having at least 5 years of proven experience in the design, development, implementation of data management strategies in Africa in multinational and/or multilateral organisations
 - Proven experience in data value enhancement and digital innovation.
 - Have familiarity with national digital/data policy development in Africa, and in the member countries of the Smart Africa Alliance.
 - Having participated in at least one (1) similar project in the last 5 years.
 - Having a good knowledge of digital ecosystem in the Kingdom of Eswatini would be an asset.
- **Socio-Economic Development Expert with a focus on ICT with the minimum requirements below to be considered for the evaluation:**
 - A University graduate with a minimum of a master's degree in economics, ICT, Monitoring & Evaluation, social science, project management or other relevant related fields.
 - Having at least 5 years of proven experience in the design, development, and implementation of sustainable ICT projects in Africa, and in the member countries of the Smart Africa Alliance.
 - Have work experience in development and/or implementation of digital transformation policies in Africa at the national or continental level.
 - Experience in developing monitoring and evaluation plans for government policies.
 - Experience working in Africa, more than 3 African countries, including Eswatini.
 - Having participated in at least one (1) similar project in the last 5 years.

6. EVALUATION METHOD AND CRITERIA

The evaluation method is Quality Cost Based Selection (QCBS). The following model will be used to evaluate all respondents and proposals submitted:

6.1 Technical Evaluation Criteria

Item	Point Range
Approach, Methodology, and Work Plan	
i. Understanding of the Terms of Reference, risk assessment, and suggestions for improvement (05). ii. The relevance of the suggested approach and methodology for the African context and alignment with the data governance policy mandate (20). iii. Feasibility and comprehensiveness of the work plan (10).	/35
Key Staff Experience	/50
• Lead Consultant, Head of Mission i. A Master's degree in technology law, computer science, economics, digital transformation, or related fields with a solid background/understanding of the data economy and data governance (5) ii. Leading and Coordinating project teams on national policies or strategies. (3) iii. At least 7 years' experience in regional data governance policy instruments development. (2) iv. Experienced in the development of multi-stakeholder institutional frameworks and mechanisms in Africa. (1) v. Experience working in/with Eswatini (1) vi. Having participated in more than one similar project in the last 5 years. (2)	/14
• Legal Expert in data governance i. A University graduate with a minimum of a master's degree in law, technology law, or other relevant related fields (5) ii. At least 5 years of proven experience in the legal aspects of data governance, data protection and privacy areas. (3) iii. Experience working on data and digital policy development in Africa at the national or continental level. (2) iv. Experience working in/with Eswatini. (1) v. Having participated in more than one similar project in the last 5 years. (1)	/12
• Data Expert in Digital transformation/economy strategies i. A University graduate with a minimum of a master's degree in data science, computer and/or STEM Disciplines, economics, statistics, business, project management, or other relevant related fields. (5) ii. More than 5 years of proven experience in design and implementation of data management strategies. (2) iii. Proven experience in data value enhancement and digital innovation (2) iv. Experience working in Africa. (1) v. Having participated in more than one similar project in the last 5 years (1) vi. Experience working in/with Eswatini (1)	/12
• Socio-Economic Development Expert in ICT i. A University graduate with a minimum of a master's degree in economics, ICT, Monitoring & Evaluation, social science, project management or other relevant related fields (5) ii. At least 5 years of proven experience in design and implementation of sustainable ICT	/12

projects in Africa. (2) iii. Experience in development and/or implementation digital transformation policies in Africa, at the national or continental level. (2) iv. Experience in developing monitoring and evaluation plans (1) v. Having participated in more than one similar project in the last 5 years. (1) vi. Experience working in/with Eswatini (1)	
Firm Experience	
• Previous Related assignments Recommendation Letters Three (3) signed and stamped recommendation letters or portfolio of projects from previous clients of similar projects including assignments to develop national digital or data related strategies or policies . i. 3 recommendations: (15) ii. 2 recommendations: (10) iii. 1 recommendation: (5) iv. 0 recommendations: (0)	/15

The financial proposal of only those firms which secure a minimum score of 75/100 in the technical evaluation will be opened.

St= Score for the Technical Evaluation

6.2 Financial Criteria

Once the technical criteria have been evaluated, the costs of all bids will be listed from low to high. Computing the cost criteria score will be accomplished by use of the following formula:

$$\frac{\text{Lowest Cost of All Proposals}}{\text{Cost of Bid for Respective Firm}} \times 100 = \text{Financial Score}$$

= Sf

The Applicant getting maximum marks on 80-0 weightage (80% for technical and 20% for financial) will be considered for the assignment. The weights given to the Technical (T) and Financial Proposals (F) are T = 0.80 and F = 0.20

The Final Score (S) is calculated as follows: $S = St * T + Sf * F$

7. SUBMISSION REQUIREMENTS FOR TECHNICAL & FINANCIAL PROPOSALS

A specific outline must be followed to facilitate the Smart Africa Secretariat's review and evaluation of the responses received.

A response to this RFP must include the following sections in the order listed:

- i) A cover letter confirming the firm's interest to provide the services required
- ii) Mandatory Administrative documents
 - Company registration certificate
 - Tax registration certificate
 - Tax clearance certificates
- iii) A technical proposal containing the following content:
 - Executive summary
 - Business experience/Profiles
 - Understanding of the Term of Reference, risk assessment, and suggestions for improvement

- Approach and Methodology
 - Work Plan / Schedule
 - Mission team experience/profiles
 - Updated Curriculum Vitae for the team and academic certificates required
 - Company/Firm Certificates or Recommendation letters of successful completion for similar past assignments, duly signed and stamped
- iv) Financial Proposal containing the following tables.
- Summary of Costs.
 - Break down of price per user group on daily rate.
 - Break down of remuneration user group on daily rate.
 - Reimbursable expenses user group applicable.
 - Miscellaneous Expenses if any

Notes:

- i. Indicate your preferred payment terms under financial proposal*
- ii. A withholding tax of 15% will be deducted from payments for Firms not VAT-registered with Rwanda Tax Administration (RRA) and 18% VAT will be applicable for registered firms in Rwanda.*
- iii. All Financial Proposals/offers should be password protected and Smart Africa will request for it for bidders who have been qualified in the technical evaluation*
- iv. All Financial Offers should be quoted and submitted in USD Currency.*

8. SUBMISSION PROCESS

Soft copies of both Technical and financial proposals must be sent to: procurement@smartafrica.org showing each the nature of the offer concerned (technical or financial offer), not later than **25th August 2025** at, 5:00 PM local time (Kigali), addressed to Procurement Office of Smart Africa Secretariat, with subject marked: **RFP ref 131/SA/RFP/07/2025: National Data Policy for Eswatini.**

1. RIGHTS RESERVED

- a) This RFP does not obligate the Smart Africa Secretariat (SAS) to complete the RFP process. SAS reserves the right to amend any segment of the RFP prior to the announcement of a selected firm.
- b) SAS also reserves the right to remove one or more of the services from consideration for this contract should the evaluation show that it is in SAS's best interest to do so.
- c) SAS also may, at its discretion, issue a separate contract for any service or groups of services included in this RFP. SAS may negotiate a compensation package and additional provisions to the contract awarded under this RFP.
- d) The Smart Africa reserves the right to debrief the applicants after the completion of the process due to expected high volume of applications and avoiding the compromise of the process.
- e) Late proposals will be rejected.

9. VALIDITY

Proposals and quotes must remain valid for **180 days** after the date of closing noted above. After, the closing date and time, all proposals received by the Smart Africa Secretariat become its property.

10. ENQUIRIES

Any inquiries will only be received at least 5 working days before the bid submission deadline. Prospective respondents who may have questions regarding this RFP may submit their inquiries to tenderenquiries@smartafrica.org

11. ANTI-CORRUPTION

Smart Africa is committed to preventing and not tolerating any act of corruption and other malpractices and expects that all bidders will adhere to the same ethical principles.